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LINE 8

25-CIV-00357

MARK FARINO VS. NATALIE LANE

MARK FARINO
NATALIE LANE

PRO SE
DAVID BANIE

DEFENDANT NATALIE LANE'S MOTION FOR ORDER COMPELLING RESPONSES TO WRITTEN DISCOVERY

TENTATIVE RULING:

Defendant Natalie Lane seeks an order compelling Plaintiff Mark Farino to respond to Defendant's Form Interrogatories (FROGS), Set One, Amended Special Interrogatories (SROGS), Set One, and Amended Request for Production of Documents (RFP), Set One.

Defendant's motion to compel responses is GRANTED.

Defendant's request for sanctions is GRANTED in part.

As an initial matter, the Court notes that Plaintiff's opposition was filed eight days late, on September 9, 2026 – after Defendant had already filed a reply brief the day before, despite that no opposition was filed. The Court exercises its discretion to consider the Plaintiff's late-filed opposition and notes that, in doing so, the outcome of this motion was not changed.

BACKGROUND

Discovery Requests

On March 13, 2026, Defendant propounded a set of requests for production of documents, special interrogatories, and form interrogatories to Plaintiff via email. (Banie Decl., ¶ 2.) Plaintiff did not respond. (*Id.*, ¶¶ 8, 9.) However, Defendant withdrew those discovery demands, which were directed at the First Amended Complaint, and served amended discovery demands directed at the now-operative Second Amended Complaint. (*Id.*, ¶ 4.)

On April 24, 2026, Defendant served Plaintiff, via email and U.S. mail, with Defendant's Amended RFP (Set One), Defendant's FROGS (Set One), Defendant's Amended SROGS (Set One), and the Amended Declaration of David Banie supporting the SROGS. (*Id.*, ¶ 3, Exs. A-D.)

On May 27, 2026, Defense counsel sent a letter to Plaintiff reminding him that his responses to the propounded discovery demands would become due in a few days. (*Id.*, ¶ 6, Ex. G.) On May 29, 2026, Plaintiff responded with a letter alleging that the service by email was defective because it was sent on an unrelated email thread. (*Id.*, ¶ 7.) However, the letter did not address that the documents were also sent by U.S. mail. (*Id.*, ¶ 8.) Further, Plaintiff previously acknowledged receiving service of the discovery demands by both mail and email in a

declaration filed on May 5, 2026, in support of an *ex parte* application to stay this action, which was denied. (*Id.*, ¶ 5, Ex. F.)

Defendant filed this motion to compel on June 10, 2026.

Subsequent Efforts to Resolve the Matter

On August 14, 2026, Defense counsel sent a letter to Plaintiff regarding an offer to withdraw this motion if Plaintiff produced certain responses to the outstanding discovery requests. (Farino Decl., ¶ 6, Ex. 1.) The letter stated:

This letter serves as a follow up to my offer about taking off calendar Ms. Lane's motion to compel written discovery and for sanctions in exchange for some of the information that is the subject of that motion. If you are still interested in this offer, it is still open. Your deposition transcript is now available. So, at your request, I will review that transcript then provide you with a list of information that I need before taking the Motion off calendar. If you deliver that information to us in a timely fashion, Ms. Lane will take the motion to compel and for sanctions off calendar.

(*Ibid.*)

On August 17, 2026, Plaintiff sent Defense counsel a letter via email addressing, among other things, Defendant's offer to withdraw the motion compel upon the production of certain discovery responses. (Banie Supp. Decl., ¶ 8, Ex. A.) Plaintiff's letter stated, in relevant part:

Before my deposition, we agreed that you would review my deposition testimony and identify the specific information you believed remained outstanding. You subsequently advised that the transcript was available and that you would review it and provide me with the transcript together with notations identifying the matters you contend remain unanswered.

Please send me the deposition transcript with those notations, as previously discussed. Once I receive it, I will review the identified matters promptly and respond in accordance with our prior agreement.

(*Ibid.*)

On August 18, 2026, Defense counsel sent a letter to Plaintiff clarifying that he never agreed to give Plaintiff a copy of the deposition transcript, which the parties must purchase from the certified shorthand reporter who took the deposition. (Farino Decl., Ex. 2.) Defense counsel explained his offer:

Here is what I said. Every one of Ms. Lane's written discovery requests — the Form Interrogatories, the Special Interrogatories, and the Requests for Production,

all served on you April 24, 2026 — is at issue in the pending motion. Not one of them has been withdrawn, and nothing that happened at your deposition narrowed them. What I told you is that I would review your deposition testimony, identify the critical information I still need, and that if you gave me that information voluntarily I would take the motion off calendar. That was the offer. It is still the offer. Full stop.

(Ibid.)

Defense counsel's letter included a lengthy, bulleted list of what he described as "the critical information I told you I would identify," which included 27 categories of documents and information sought by Defendant, complete with citations to the corresponding discovery demands and citations to Plaintiff's deposition, where relevant. *(Ibid.)* Preceding that list, the letter states:

[H]ere is the information I still need. You closed your letter by saying that nothing in it alters the agreement we reached before your deposition. Nothing in mine does either. This letter is me performing my half of it.

(Ibid.) Following the bulleted list of discovery categories, Defense counsel states that several of the listed items were offered by Plaintiff at his deposition, including "the bracketed items you agreed at the close of your deposition to complete." *(Ibid.)* The letter goes on to state: "I will send you the list of bracketed page and line citations separately, as I said I would, so that the last of those items is squarely in your hands." *(Ibid.)*

The letter concludes: "I share the interest you express in keeping discovery focused and resolving it without unnecessary motion practice. So, my offer stands. Give me the information set out above by September 8, 2026, and I will take the motion off calendar." *(Ibid.)*

DISCUSSION

Motion to Compel

Plaintiff does not dispute his failure to respond to the FROGS, SROGS, and RFP. Nor does Plaintiff dispute that his responses remain outstanding.

Plaintiff explains that Defendant offered to drop this motion to compel and request for sanctions if he produced certain documents prior to September 8, 2026. Plaintiff states that he did not do so because Defense counsel stated in his letter dated August 18, 2026, that he would produce a "list of bracketed page and line citations separately" – but failed to do so, while Plaintiff waited in reliance. Plaintiff argues that Defendant's failure to provide the list of bracketed page and line citations justifies denying this motion to compel and Defendant's request for sanctions.

The Court disagrees. While the precise significance of list of "bracketed page and line citations" is unclear, Defendant's letter explicitly identifies 27 categories of documents and information

sought, which Defense counsel describes as “the critical information I told you I would identify.” At a minimum, to comply with Defendant’s offer, Plaintiff could and should have provided responses addressing the categories of documents and information identified in Defendant’s letter, rather than standing by idly. Nothing in the evidence provided by either party indicates that Plaintiff ever followed up seeking the bracketed list mentioned in Defendant’s letter. And further, separate from the parties’ late attempt to resolve this matter cooperatively, Plaintiff had possession of the discovery demands at issue since they were served on April 24, 2026, and could have served responses at *any time* before the deadline, after the deadline, after defendant filed the motion to compel, or after defendant’s August 18 letter – but failed to do so.

Accordingly, Defendant’s motion to compel responses to Defendant’s Amended RFP (Set One), Amended SROGS (Set One), and FROGS (Set One) is GRANTED. Plaintiff shall serve complete responses without objections within fourteen (14) days of notice of entry of this order.

Sanctions

“[T]he court shall impose a monetary sanction . . . against any party . . . who unsuccessfully makes or opposes a motion to compel” a responses to interrogatories and/or requests for production of documents, “unless it finds that that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).)

While California law does not require detailed billing records or time sheets to support a fee award in connection with discovery sanctions, the moving party must submit a declaration setting forth the hourly billing rate, the number of hours expended, and a description of the tasks performed in connection with the motion. (*See, e.g., Steiny & Co. v. California Elec. Supply Co.* (2000) 79 Cal.App.4th 285, 293.) Here, Defendant’s supporting declaration provides only the sum of \$4,250 in attorney’s fees and \$600 in paralegal fees, with no details concerning the hourly rate, hours expended, or tasks performed. Thus, the Court cannot tell if the sanctions requested are reasonable.

However, this Court may use its own experience to determine the value of attorneys’ fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 [“The value of attorney’s services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value.”]; *Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105, 1113-14 [“The trial court acted well within its discretion in using ‘the prevailing market value in the community for similar legal services’ relying on its personal knowledge and familiarity with the area legal services, as the ‘touchstone’ for determination” of the reasonable hourly rates.” (citations omitted)]). This Court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys’ fees and costs frequently during her time as a judicial officer, including awarding attorneys’ fees as a sanction in discovery motions.

Accordingly, the Court awards attorneys' fees of four hours at \$350.00 per hour for a total of \$1,400 plus the filing fee of \$60.00 for a total fee of \$1,460.00. The sanctions shall be paid within ninety (90) days after notice of entry of order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 9

25-CIV-05040

IMELDA NAVARRO VS. SYLVIE OCAFRAIN, ET AL.

IMELDA NAVARRO,
SYLVIE OCAFRAIN

MAREENA IBRAHIM

COSTCO WHOLESALE CORPORATION'S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

Defendant Costco Wholesale Corporation's ("Defendant") Motion for Summary Judgment is GRANTED to the Complaint by Plaintiff Imelda Navarro ("Plaintiff").

Background

Plaintiff brings this action for general negligence and premises liability against Defendant after Plaintiff slipped and fell on a liquid substance at Defendant's store on July 19, 2023.

Defendant moves for summary judgment on the ground that it performed reasonable inspections of the premises and the burden shifts to Plaintiff to demonstrate that Defendant had notice of the water on the floor prior to the accident. Defendant also argues that Plaintiff cannot demonstrate Defendant had actual or constructive notice of the dangerous condition.

Plaintiff's Responsive Separate Statement fails to comply with California Rules of Court, rule 3.1350

Plaintiff's responsive separate statement does not include the evidence cited in Defendant's separate statement. As such, it fails to comply with the opposing separate statement format required under rule 3.1350(h). (See Cal. Rules of Court, rule 3.1350(h).) The court exercises its discretion to still consider Plaintiff's responsive separate statement, but it cautions Plaintiff to comply with this rule in the future.

Legal Standard

For purposes of a summary judgment or summary adjudication motion, the defendant has met the initial burden of showing that a cause of action has no merit if the party has shown that one or more elements cannot be established, or there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Once the defendant has met this burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (*Ibid.*)

For a defendant to meet the initial burden, it may present affirmative evidence negating as a matter of law an essential element of plaintiff's claim. (*Guz v. Bechtel Nat., Inc.* (2000) 24
